SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 228 of 2018 (YEAR: 2018)

CORAM: MADAN B. LOKUR, DEEPAK GUPTA

Dataram Singh
... Appellant(s) / Petitioner(s)
Versus
State of Uttar Pradesh
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973
Sections:	Section 437 CrPC, Section 439 CrPC

JUDICIAL HEADNOTE & SUMMARY

Held that a fundamental postulate of criminal jurisprudence is the presumption of innocence; denying bail unnecessarily infringes fundamental liberties.

RATIO DECIDENDI

The Court held that: Held that a fundamental postulate of criminal jurisprudence is the presumption of innocence; denying bail unnecessarily infringes fundamental liberties. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Dataram Singh v. State of Uttar Pradesh (Criminal Appeal No. 228 of 2018) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, particularly Section 437 CrPC, Section 439 CrPC. Held that a fundamental postulate of criminal jurisprudence is the presumption of innocence; denying bail unnecessarily infringes fundamental liberties.

OPERATIVE ORDER

ORDER: Decided